When Filing a Crossing Craft Grievance

Clerk Craft Work vs
Mail Handler Craft Work

How and When Inventories Change

Maneuvering through the Jurisdictional Process



2021

The purpose and use of this flow chart is the following:

1. Reflect the changes from the June 26, 2018 update MOU and RI-399 understandings in relation to the article 15 grievance procedure in an easy to follow teaching tool

2. Provide a teaching tool and functional support for explaining the processes related to handling jurisdictional issues

3. Reflect the changes from the update MOU in relation to the RI-399 process for the LDRC's, RDRC's and NDRC's use

4. Show the proper steps for handling crossing craft grievances to ensure compliance with the grievance procedure and the RI-399 process

5. Allow for access to the appropriate forms needed as may be utilized by Stewards, LDRC and RDRC members throughout the process while acknowledging that step in the procedure

6. Ensure compliance at all levels with RI-399 processes and procedures as outlined in the June 26, 2018 Update MOU

7. Show when and how the installation inventory is changed through the update RI-399 MOU

Everything Starts with a Completed/Updated Installation Inventory

- Your Inventory Must Always be Updated
- Updated Copies should be maintained at the LDRC, RDRC and NDRC

This power point reflects 3 areas of concern:

- Inventories and Filing Crossing Craft Grievances
- When and How Inventories Change
- Maneuvering through the Jurisdictional process

When Filing a Crossing Craft Grievance

Clerk Craft Work vs Mail Handler Craft Work

When filing crossing craft grievances in the Article 15 process, include a copy of the section of the installation inventory containing
the specific operation and
the listed specific function in question

RI399 Joint Installation Inventory Sheet - PDF[1].pdf

When filing a grievance at Step 1 or at Step 2
Determine the following:
Specific Operation and Specific Function being performed by the Craft in question.
Refer to Installation Inventory

When Specific Operation and Specific Function Is covered by Inventory

Should be Settled at Step 1 or at the latest Step 2

Closed

Or

When Specific Operation and Specific Function IS NOT covered by Inventory

May be addressed/resolved at Step 1 or 2 with a settlement, but No Jurisdiction may be determined!

June 26, 2018 MOU 10.f. and 10.g

Neither Step 1 Nor Step 2 May Refer a Grievance To the Dispute Resolution Process

(If not resolved by Step 2), Appeal to Step 3 for review and processing. Upon receipt of the grievance at Step 3, management shall have 21 calendar days to forward a copy of the file to the non-grieving union (this must be done for all crossing craft grievances involving Mail Handlers performing Clerk Craft Work appealed to step 3)

(June 26, 2018 update MOU 10.f and 10.g and 8/10/2018 update MOU Q&A #3 and #4)

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(June 26, 2018 update MOU 10.f and 10.g and 8/10/2018 update MOU Q&A #3 and #4)

Management shall forward a copy of the file to the Step 3 representative of the non-grieving union 21 calendar days from receipt at the USPS Service Center.
Referral Form Article 7.2 RI-399 - Final.pdf

At this point the parties have 3 Options:

1. The non-grieving union may declare no dispute on 21 day form.
2. The non-grieving union may declare a dispute and forward through to RDRC by signing the 21 day form.
3. Management may refer the Step 3 Grievance to the RI399 process.

These 3 Options and their steps are laid out in the following slides

Option 1 and 2
Of 3

Upon receipt, the step 3 representative of the non-grieving union has 21 Calendar days to determine that no dispute exists or refer the issue to the jurisdictional dispute process.

Option 1. Non-Grieving Union representative determines that the issue is not an RI-399 issue

That issue is sent back to the Article 15 process of the grieving union by signing the 21 day letter that no dispute exists. This party shall not be able to refute jurisdiction at a later date or time in the process

Closed
in the RI399 jurisdictional process

OR

Option 2. Non- Grieving Union Representative refers to RDRC
Referral Form Article 7.2 RI-399 - Final.pdf

(8/10/2018 update MOU Q&A #4, June 26, 2018 update MOU 10.f and 10.g)

Form to Appeal to RDRC
Appeal to RI-399 Regional Dispute Resolution Committee FORM.pdf

Option 2 of 3 continued

If it is decided to refer the grievance to the jurisdictional process, any referral ***will*** be to the RDRC for further processing as they have the ability to remand it to the LDRC, settle it or appeal it to jurisdictional arbitration.

Those RDRC options are outlined below:

- ☐ **Resolved.** The operation/description and function(s) have been listed in the facility inventory and signed off on.
- ☐ **On Hold.** The committee agrees that the issue pertains to a jurisdiction dispute at the National level. The RDRC will review after and apply the national decision to the Local Dispute. (*Include the Jurisdictional Case # on the form)*
- ☐ **Remanded.** The committee agrees that the issue is not a RI-399 jurisdiction dispute and agree to remand it back to the moving party's grievance procedure as a cross craft issue for resolution.
- ☐ **Remanded.** Back to LDRC
- ☐ **Appealed to NDRC.**
- ☐ **Appealed to Regional RI-399 Arbitration.**

Appeal to RI-399 Regional Arbitration FORM.pdf

Regional Dispute Resolution Committee Disposition FORM.pdf

Option 2 of 3 continued

What Actions the LDRC May Take

- ❑ **Resolved.** The operation/description and function(s) have been listed in the facility inventory and signed off on.
- ❑ **On Hold.** The committee agrees that the issue is held pending jurisdictional case # _____.
- ❑ **Remanded.** The committee agrees that the issue is not a RI-399 jurisdiction dispute and agree to remand it back to the moving party's grievance procedure as a cross craft issue for resolution.
- ❑ **Appealed to RDRC.**

Local Dispute Resolution Committee Disposition FORM.pdf

Option 3 of 3

Management may refer the Step 3 grievance to the RI-399 Jurisdictional Process no later than the timely issuance of the Step 3 denial. It is preferred that the appeal be made to the RDRC. Failure to do so shall forfeit their right to do so at a later date.

(8/10/2018 update MOU Q&A #4, update MOU 10.f and 10.g)

Appeal to RI-399 Regional Dispute Resolution Committee FORM.pdf

Crossing Craft Grievances Not Properly Handled at Step 3

Crossing Craft Grievances Not Properly Handled at Step 3

What happens when a crossing craft grievance somehow makes it beyond Step 3 due to:

- USPS fails to forward to non-grieving union
- Grieving union Appeals to Arbitration without non-grieving union review
- After receipt of properly forwarded crossing craft grievance by non-grieving union, non-grieving union fails to review and properly act upon crossing craft grievance in accordance with update MOU

Answer: Q&A #4

See Next Slide

Crossing Craft Grievances Not Properly Handled at Step 3

Answer: Q&A #4

4. What is the process at Step 3 when an Article 7.2 Grievance involving clerks and mail handlers is received by the Postal Service

Answer: The Postal Service's Step 3 representative is required to send a copy of the file to the designated Step 3 representative of the non-grieving union within 21 calendar days of receipt of the Step 3 appeal at the USPS Service Center. This notification does not modify the contractual timelines for meetings at Step 3. Included with the case file shall be a form developed by the NDRC that the non-grieving union must return within 21 days from receipt of the case file. Using this form, the Step 3 representative of the non-grieving union will state if the case is being referred to RI-399. Any referral will be to the RDRC for further processing. If the Postal Service Step 3 representative does not provide a copy of the case file to the non-grieving union, when that error is identified the grievance will be returned to Step 3 for the appropriate notification.

RI-399 Dispute Resolution Procedure Update – Questions and Answers